

Sandip Gupta v. State of U.P. and others

Allahabad High Court · Division Bench · 17 January 2020 · Writ-C No. 1368 of 2020 · WRIT - C No. 1368 of 2020 ·
Writ disposed of with directions; Section 127 appeal preserved.

HEADNOTE

A writ to quash a final assessment notice of Rs. 1,36,117 was disposed of without examining the demand. The consumer was directed to appear before the Executive Engineer with objections and evidence; a speaking final order was to follow within four weeks; coercive action was stayed for eight weeks or until disposal of the objection, whichever was earlier; and a Section 127 appeal remained open if the consumer was still aggrieved.

FACTUAL SUMMARY

Sandip Gupta petitioned the Allahabad High Court seeking certiorari to quash a final assessment notice dated 13 September 2019 issued by the Executive Engineer (respondent no. 3), which imposed a demand of Rs. 1,36,117. He alleged that the respondents were taking coercive action against him without giving any opportunity of hearing and without following the provisions of the U.P. Electricity Supply Code, 2005. The Division Bench heard counsel for the petitioner and Mr. Baleshwar Chaturvedi for the electricity department and perused the record.

HOLDING-UNITS

HOLDING-UNIT · EA2003::127

speaking-order-then-section-127-appeal

HOLDING

Where a consumer challenges a final assessment notice alleging coercive recovery without hearing, the High Court may dispose of the writ by directing appearance before the Executive Engineer with objections and evidence, requiring a speaking final order within a fixed time, staying coercive action in the interim, and leaving the consumer to an appeal under Section 127 of the Electricity Act, 2003 if still aggrieved. ¶ 1

PRINCIPLE TAGS

alternative-remedy-relegation-section-127 The writ against the assessment notice was disposed of with a direction to the Executive Engineer to pass a speaking final order after hearing, preserving a Section 127 appeal if the consumer remained aggrieved. ¶ 1

s127-appeal-lies-only-against-final-order-not-provisional-assessment Section 127 was left open only against the speaking final order to be passed by the Executive Engineer, not against the existing assessment notice itself. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — LEGALITY OF THE RS. 1,36,117 ASSESSMENT

The merits of the impugned demand were not examined. ¶ 1

NOT DECIDED — COMPLIANCE WITH THE U.P. ELECTRICITY SUPPLY CODE, 2005

The allegation that coercive recovery proceeded without Supply Code compliance was not decided. ¶ 1